

ORIGINAL

(S E R V E D)  
( August 24, 2000 )  
(FEDERAL MARITIME COMMISSION)

**FEDERAL MARITIME COMMISSION**

**WASHINGTON, D. C.**

August 24, 2000

**DOCKET NO. 00-04**

**AL KOGAN d/b/a GALAWAY INTERNATIONAL**

v

**WORLD EXPRESS SHIPPING, TRANSPORTATION AND  
FORWARDING SERVICES, INC. d/b/a W.E.S.T.  
FORWARDING SERVICES (FMC LIC. #3118-R)**

---

**PROTECTIVE ORDER REGARDING DEPOSITION  
OF MR. PETER JANETZKI TAKEN ON JULY 27, 2000**

---

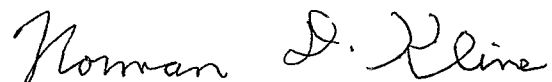
The following protective order, which was given orally on July 25, 2000 in outline form, is here presented in full

The information which Mr. Janetzki will be giving in his deposition will be given in confidence and the transcript of the deposition will be held in confidence insofar as the information relates to matters that are deemed by respondent WEST to be confidential, proprietary or of such

sensitive nature that respondent WEST could suffer harm to its business if the information were to be disclosed publicly. Therefore, anyone hearing or reading Mr. Janetzki's testimony as to such confidential information is ordered to use the information only for purposes of this proceeding and not to disclose it to any person outside those persons bound by this protective order until and unless the order is modified to allow such disclosure after motion and opportunity to reply thereto. Each person allowed to remain in the deposition room will be bound by this protective order. Any other person deemed by counsel to be necessary to have access to the confidential information for the purpose of assisting counsel, including secretarial and clerical personnel, will be advised of this protective order by counsel and will be required to agree to abide by this protective order.

If feasible, the parties may separate a nonconfidential portion of the deposition from the confidential portion, which nonconfidential portion may be made public and not be conducted under seal.

If any party wishes to offer the deposition of Mr. Janetzki as evidence at a later date and its motion to admit is granted, and if the protective order is unchanged, it is understood that the presiding administrative law judge or the Commission may make such use of the deposition as may be necessary to reach a sound decision pursuant to 46 C.F.R. 502.167 but with due regard for WEST's concerns.



Norman D. Kline  
Administrative Law Judge